

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304785	420 HARLEY KNOX, LLC vs COTC MANAGEMENT, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR 420-1, LLC

Tentative Ruling:

After reviewing the declaration of counsel, Sean Kneafsey, (CRC 3.1362(d)), the court finds that counsel has shown sufficient reasons why the motion to be relieved as counsel should be granted (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134). Notice to client was made (Section 3(a) and (b) MC-052; CRC 3.1362(d)). Accordingly, the Motion to be Relieved as Counsel of Record is Granted. Counsel is ordered to prepare and submit an order for the Court's signature.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2304785	420 HARLEY KNOX, LLC vs COTC MANAGEMENT, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR 420-3, LLC

Tentative Ruling:

After reviewing the declaration of counsel, Sean Kneafsey, (CRC 3.1362(d)), the court finds that counsel has shown sufficient reasons why the motion to be relieved as counsel should be granted (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134). Notice to client was made (Section 3(a) and (b) MC-052; CRC 3.1362(d)). Accordingly, the Motion to be Relieved as Counsel of Record is Granted. Counsel is ordered to prepare and submit an order for the Court's signature.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2304785	420 HARLEY KNOX, LLC vs COTC MANAGEMENT, LLC	MOTION TO QUASH SERVICE OF SUMMONS ON COMPLAINT

Tentative Ruling:

Moving party: Defendant Talarya Brands, LLC
Responding party: Plaintiff 420 Harley Knox, LLC

This is a commercial lease dispute. Plaintiff 420 Harley Knox, LLC ("Plaintiff") alleges that Defendants COTC Management, LLC ("COTC"), 420-1, LLC, 420-3, LLC, Dustin Milner ("Milner"), LT Canna Distro, Inc., and Better Than Good Holdings, Inc. refused to pay rent, abandoned the commercial premises located at 420 Harley Knox Boulevard, Perris, before the end of the lease term, and left the premises with damages

concerning chemicals released. Plaintiff asserts that it has been damaged in the sum of at least \$1,737,606.35, plus interest. The complaint, filed 9/12/23, asserts a single cause of action for breach of lease, and alleges that each defendant is the alter ego of the other defendants.

Cross-Complainant COTC filed a Third Amended Cross-Complaint (“TACC”) on 1/30/25 against Plaintiff 420 Harley Knox, LLC. It alleges that Plaintiff failed to set up separate utility meters at the building, which forced COTC to pay for the electricity of another tenant (Virtual Innovations, LLC) that leased 73.7% of the same building. The TACC asserts: (1) breach of lease; (2) breach of the implied covenant of good faith and fair dealing; (3) breach of separate oral contract; (4) promissory estoppel; (5) promissory fraud/false promise.

On 3/19/26, Plaintiff added Defendant Talarya Brands, LLC (“Defendant”) as a doe defendant. **Trial originally set for 8/14/26 was vacated.**

Now, Defendant moves to quash the summons on the grounds that Plaintiff 420 Harley Knox, LLC untimely added it as a Defendant. It contends Plaintiff was aware of its identity when the parties executed the Third Amendment to Lease on 5/20/22, when Dustin Milner sent emails as early as 12/20/22 using an email signature block identifying himself as the CEO of Talarya Brands, LLC, and when Defendants provided discovery responses in November 2024. It argues prejudice due to the lack of discovery on the eve of trial and discovery is now closed.

Plaintiff argues that the Doe amendments meet CCP §474 as it was not aware of Defendant’s identity and its probable liability as an alter ego until the depositions of Dustin Milner on 3/13/26 and 3/16/26. It contends that it was not aware of it earlier. Plaintiff asserts that it was not required to show diligence, that Defendants are not prejudiced, and that adding Talarya to the action will result in judicial efficiency by avoiding a separate litigation on the same issues. Plaintiff argues that claims are not time-barred.

Defendant repeats the arguments from the moving papers.

Analysis

In *Barrows v. American Motors Corp.* (1983) 144 Cal.App.3d 1, 9, the court found that a motion challenging Doe amendments must be based on an evidence motion, such as a motion for summary judgment. In *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1067, the court followed *Barrows* and stated that a challenge of a Doe amendment must be via an evidence motion. There, the defendant had filed a motion to quash, and the court treated it as a *Barrows* motion. (*Id.* at 1063-1064, 1067.) Thus, this is technically a *Barrows* motion.

“Absent compliance with Code of Civil Procedure section 474, service of a summons on a purported Doe defendant is ineffective. [Citation.] “[O]ne “who is not named either by his true or a fictitious name or as an unknown defendant is not a proper party to an action, and service of summons upon such person upon proper motion

should be quashed.” [Citation.]’ ” (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1145.) “Code of Civil Procedure section 474 permits a plaintiff to amend complaints by adding parties as Doe defendants ‘when the plaintiff is ignorant of the name of a defendant’ at the time the complaint is filed.[] The purpose of section 474 is to enable a plaintiff to avoid the bar of the statute of limitations when he is ignorant of the identity of the defendant. [Citation.] The cases discussing section 474 deal with whether the plaintiff was truly ignorant of the identity of the person brought into the case as a Doe defendant because if that requirement is met, the amendment to the complaint relates back to the date the complaint was filed and the statute of limitations is preserved. [Citations.]” (*Davis v. Marin* (2000) 80 Cal.App.4th 380, 386-387.)

The question, however, is not whether Plaintiff was aware of Defendant’s identity at the time of the complaint—it appears it was not. In reply, Defendant confuses the issue by focusing on cases involving “should have known” the identity at the time of the complaint. The issue is whether Plaintiff timely filed the Doe amendment, as “a plaintiff may not ‘unreasonably delay’ his or her filing of a Doe amendment after learning a defendant’s identity.” (*A.N.*, supra, 171 Cal.App.4th at 1058.)

Furthermore, and as an aside, there is no statute of limitations issue even if the relation back doctrine was not to apply. The underlying breach of the written lease occurred 5/20/22 after the execution of the 3rd amendment to lease, and Plaintiff filed the Doe amendment on 3/19/26—within the 4-year statute of limitations for breach of contract. (CCP §337.) Thus, Plaintiff did not need to do a Doe amendment, it could have just sought leave to amend under CCP §473(a)(1) on an ex parte basis. The trial court has discretion to add party by amendments, and the defendant has to demonstrate prejudice. (*Fifth & Broadway Partnership v. Kimny, Inc.* (1980) 102 Cal.App.3d 195, 199.)

Defendant’s argument first goes to constructive knowledge—rather than actual knowledge. First, it points to the third amendment to lease executed on 5/20/22, which merely references a financing term sheet with another entity, and did not actually identify Defendant Talarya. Second, it points to Dustin Milner’s email signature blocks, which again merely state that Milner is the CEO of Talarya, and did not identify Defendant as a party liable for contract breach. At best, it points to some discovery responses served in November 2024, where Defendants COTC Management, LLC and Better Than Good Holdings, Inc. stated that Talarya was their ultimate parent corporation. There are, however, no apparent facts linking Talarya to the alleged contract breach. To the extent that Defendant argues a lack of diligence on Plaintiff’s part, that is not the standard.

The real issue is prejudice as delay alone is not sufficient. (*Barrows*, supra, 144 Cal.App.3d at 9.) Here, Defendant could have moved Ex Parte seeking to reopen discovery concurrently with this motion, but it has not done so. If the court grants a motion to reopen discovery, there would be no prejudice.

Accordingly, the court denies the motion.